

QUAERENS LTD

Professional Client Assessment Report

Static Caravan / Holiday Park Claim Review

Client Kennedy Vaughan Address / contact details: TBC from client file	Prepared for Initial claim assessment and evidence review Date prepared: 3 July 2026
--	--

Important status note:

This assessment is preliminary and based on the litigation bundle, SAR material and registers provided. It is not legal advice and does not guarantee recovery. The case should be referred to an appropriate legal partner once the evidence index, chronology and Schedule of Loss are complete.

Client Information Matrix

Field	Information
Client Name	Kennedy Vaughan
Address	TBC - not provided in the reviewed bundle
Telephone	TBC
Email	TBC
Product	Static holiday caravan / replacement caravan
Supplier / Park Operator	Haven Holidays Limited / Bourne Leisure Ltd - exact contracting entity to be checked
Park / Location	Haven / Hopton referenced in additional bundle; precise park and pitch details TBC
Relevant Period	First purchase around 2016/2017; upgrade date and handover date TBC
Documents Reviewed	Haven litigation bundle sections 1-20, master chronology, SAR register, SAR analysis and authorities register
Primary Complaint	Alleged pre-contract assurances that defects would be rectified before handover, followed by unresolved defects and prolonged complaint/SAR history
Claim Status	Detailed narrative prepared; primary exhibits, figures and final court bundle references still require completion

Executive Summary

Mr Kennedy Vaughan appears to have a potentially arguable static caravan claim against Haven Holidays Limited / Bourne Leisure Ltd arising from the purchase of a replacement caravan. The central allegation is that Haven's representative induced the purchase by giving clear assurances that identified defects would be rectified before handover. The claimant says those assurances were relied upon and were not honoured.

The additional material strengthens the evidence-management side of the case. It identifies a Subject Access Request history, delayed disclosure, internal Haven records and a legal authorities register covering the Consumer Rights Act

2015, Misrepresentation Act 1967, Consumer Protection from Unfair Trading Regulations 2008, statutory interest and civil procedure.

The matter is not yet ready to be presented as a fully quantified legal claim. The report should be treated as a detailed preliminary assessment. The strongest next step is to convert the existing narrative bundle into a solicitor-ready evidence pack with exhibit numbers, exact dates, signed witness evidence and a properly evidenced Schedule of Loss.

Preliminary claim strength:

Preliminary claim strength: potentially moderate to strong, subject to evidence. The strongest points are the alleged pre-handover assurances, pre-contract knowledge of defects, reliance, continuing unresolved defects, and Haven's own internal/SAR records. The main risks are limitation, missing financial figures, and the need to prove the exact words or written record of the assurances.

Background & Chronology

Date / Stage	Event / Relevance
2015	Bundle states Mr Vaughan suffered three brain aneurysms, with long-term effects including memory impairment.
2016 / 2017	Family purchased first Haven caravan for private family use, during a period affected by their son's lymphoma treatment.
Relationship with Haven	The bundle states that a relationship of trust developed with Haven's representative, Aaron, who knew the family's personal circumstances.
Upgrade discussions	Haven allegedly encouraged an upgrade to a replacement caravan.
Pre-signature inspection	Mr and Mrs Vaughan allegedly inspected the replacement caravan and identified numerous defects before signing.
Assurances before purchase	The claimant says Aaron assured them all identified defects / snagging would be rectified before occupation or handover.
Handover / occupation	The claimant says the caravan was not completed as promised and numerous defects remained.
Complaint period	The claimant made repeated complaints and gave Haven opportunities to remedy the issues over an extended period.
June 2025 TBC	SAR register says an initial Subject Access Request was submitted to Haven / Bourne Leisure; exact date to confirm.
17 January 2026	SAR register says disclosure was received after significant delay; to check against the source email/bundle.
20 March 2026	SAR register refers to Haven correspondence concerning delay/admin handling of the SAR; to exhibit.
Current	Litigation bundle and evidence analysis prepared; final exhibits, page references and loss figures remain to be completed.

Technical Findings Analysis

The technical issue is the condition of the replacement caravan before and after purchase. The available bundle repeatedly states that numerous defects were identified before signature, that Haven was made aware of them, and that completion of remedial works was promised before handover.

Defect and snagging concerns

- The bundle refers to approximately seventy-one defects, but the final defect schedule still needs to be attached and cross-referenced.
- The most important proof will be a pre-handover snagging list, photographs, emails and Haven repair/work-order records.
- Each defect should be mapped to: date identified, whether it was pre-contract, who was told, what was promised, what was completed and what remained outstanding.
- If independent inspection evidence exists, it should be prioritised because it may reduce reliance on recollection alone.

Repair and remedial work concerns

The claimant's account is that Haven was given repeated opportunities to resolve the problem. The final evidence pack should distinguish between defects that were never repaired, defects repaired late, defects repaired poorly, and defects that caused continuing loss of use or enjoyment.

Technical evidence priority:

Technical evidence priority: the case needs a single master defect schedule supported by dated photographs, emails, snagging records, repair logs and Haven internal notes. Without that schedule, the legal narrative remains much harder to prove.

Legal / Contract / Consumer Analysis

This is not a finance-only complaint. The principal routes are likely to be contractual, consumer and representation-based. The correct route should be confirmed by a solicitor after reviewing the purchase agreement, written terms, warranty, park rules and any disclaimer or inspection wording.

- Misrepresentation / inducement: potentially strong if clear pre-contract assurances can be proved and the claimant relied on them when purchasing.
- Breach of contract: potentially arguable if the promise to complete remedial works formed part of the agreed transaction.
- Consumer Rights Act 2015: relevant to satisfactory quality, fitness, description and pre-contract information where a trader supplied goods/services to a consumer.
- Consumer Protection from Unfair Trading Regulations 2008: potentially relevant if there were misleading actions, omissions or pressure tactics during the sales process.
- Misrepresentation Act 1967: listed in the client's authorities register and relevant to alleged false or unfulfilled representations.
- Data protection / SAR issues: useful as supporting evidence and potentially a separate complaint route, but not the primary caravan sale cause of action.

SAR / Disclosure / Internal Records Analysis

The additional bundle places greater emphasis on the Subject Access Request and Haven's internal records. This is important because the claimant's case should not rely only on memory. Haven's own records may confirm dates, conversations, complaint handling, repair history and internal knowledge.

SAR Ref	Point from new material	Assessment
SAR001	Initial Subject Access Request submitted, June 2025 TBC.	Confirm exact date and attach original request.

SAR002	Acknowledgement / delay issue during 2025.	Attach Haven acknowledgement and chase emails.
SAR003	Disclosure said to have been received 17 January 2026.	Index received documents and identify strongest internal records.
SAR004	Haven apology / admin error correspondence dated 20 March 2026.	Potentially useful conduct evidence; attach and summarise.
SAR005	Missing / incomplete disclosure review pending.	Prepare missing-document schedule if relevant.
SAR006	Internal Haven records received through SAR disclosure.	Compare against claimant chronology and exhibit contradictions/support.
SAR007	SAR relevance to claim.	Use to support internal knowledge, complaint handling and credibility, not as a substitute for loss evidence.

Financial Exposure

Financial exposure remains TBC because the extracted bundle does not provide a complete purchase price, site-fee history, insurance position, repair costs, removal/disposal figures or residual value evidence. Any report to solicitors should include a fully evidenced Schedule of Loss.

Field	Amount	Basis / Comment
Replacement caravan purchase cost	TBC	Purchase agreement, invoice and payment evidence required.
Part-exchange / trade-in value	TBC	Needed to understand net purchase loss.
Annual site / pitch fees	TBC	Statements and dates required; only claim where linked to loss period and legally recoverable.
Insurance / ownership costs	TBC	Policy documents and payment records required.
Repair / inspection costs	TBC	Invoices, reports and receipts required.
Removal / disposal / residual value	TBC	Bundle says caravan was ultimately removed; full documentation required.
Loss of use / enjoyment	TBC	May be relevant, but recoverability and valuation require legal advice.
Current quantified exposure	Not yet reliable	Narrative exists, but the financial schedule is incomplete.

Valuation Matrix

The following matrix is indicative only. It should not be presented as a guaranteed outcome. Final valuation depends on contract terms, limitation, liability evidence and documented loss.

Scenario	Indicative Position	Rationale
Conservative	Documented direct outlay only	Recovery limited to clearly evidenced costs directly linked to the unresolved defect issue.
Moderate	Direct outlay plus consequential costs	Applies if purchase documents, repair history and complaint records support breach/misrepresentation.

Strong	Material recovery claim	Applies if Haven's own records support pre-contract assurances, unresolved defects and loss causation.
Exceptional	Only after solicitor review	Requires clear liability, strong documents, manageable limitation and a complete Schedule of Loss.

Evidence Required

The claim should now move from narrative bundle to exhibit-backed case pack. The objective is to prove what was promised, what was supplied, what remained defective and what each loss figure represents.

1. Signed purchase agreement, terms and conditions, warranty, park rules and any disclaimer/inspection wording.
2. Invoice, payment records, part-exchange documents and any finance paperwork.
3. Pre-handover snagging list and any written notes showing defects identified before signature.
4. Photographs/videos of each defect, preferably dated and matched to the defect schedule.
5. Emails, letters or messages recording Aaron/Haven's assurances.
6. Haven work orders, repair logs, inspection notes and internal records disclosed through SAR.
7. Full SAR correspondence: request, acknowledgement, chasers, disclosure, apology/admin error correspondence and missing disclosure review.
8. Formal complaint letters and Haven responses.
9. Annual site fee, insurance, repair, removal/disposal and residual value evidence.
10. Signed witness statements from Mr Vaughan and Mrs Vaughan.

Preliminary Assessment

Assessment Factor	Preliminary Position
Misrepresentation / Reliance	Potentially strong if the assurances are supported by witness statements, sales records, messages or Haven internal notes.
Contract / CRA Position	Potentially arguable, but the purchase agreement and warranty wording must be reviewed.
Technical Evidence	Promising narrative, but requires a defect-by-defect exhibit schedule.
SAR / Disclosure Evidence	Now stronger. Additional bundle provides a SAR register, disclosure history and internal-records analysis framework.
Loss Evidence	Currently weak to moderate because figures remain TBC.
Limitation Risk	High until exact purchase, handover and complaint dates are reviewed by solicitors.
Overall View	Good candidate for legal partner review once the evidence and loss schedules are completed.

Recommendations & Next Steps

11. Create a single chronological case summary with exact dates and exhibit references.
12. Prepare a master defect schedule covering all alleged defects and repair history.
13. Complete the SAR evidence schedule using references KV-SAR-001 onwards.
14. Build a fully evidenced Schedule of Loss before any settlement figure is discussed.
15. Confirm the legal entity: Haven Holidays Limited, Bourne Leisure Ltd, or another contracting party shown on the sales paperwork.

16. Send the completed pack to a legal partner for limitation, liability and quantum advice.

Recommended case direction:

Recommended case direction: proceed to evidence indexing and solicitor review. The case has a detailed narrative and useful SAR/internal-records angle, but the professional strength of the file will depend on matching each allegation to exhibits and each loss to proof.

Specialised Caravan / Holiday Park Assessment Points

- Sales representation analysis should focus on exactly what was said before signature and whether those statements induced the purchase.
- Condition analysis should separate pre-contract defects, handover defects and later developing issues.
- Holiday park ownership analysis should include site fees, pitch/licence terms, park rules, warranties and any restriction on remedies.
- SAR analysis should be used to compare Haven's internal records against the claimant's chronology.
- Loss analysis should avoid unsupported figures and should separate purchase loss, ongoing ownership costs, repair/removal costs and loss of use.

End of Preliminary Assessment Report